

D. Punitive Damages (Issue No. 5.)

Defendants seek adjudication of punitive damages solely on the theory that the elder abuse cause of action fails, presenting no independent ground for adjudication of the prayer. (Mot., 33:1-5; Defs.' SSF No. 79.)

Because the Court denies summary adjudication of the elder abuse cause of action, summary adjudication of the punitive damages claim is likewise denied.

V. Disposition

Based on the foregoing, the motion is denied in its entirety.

14. 9:00 AM CASE NUMBER: MSC22-00100

CASE NAME: RIDEAU VS GHC OF CONTRA COSTA, ET AL.

HEARING ON SUMMARY MOTION

FILED BY: ANN NGUYEN-TRAXLER, M.D.

TENTATIVE RULING:

Defendant Ann Nguyen-Traxler, M.D.'s Motion for Summary Judgment, or Summary Adjudication of Issues, is **denied**.

Background

This motion is one of two summary judgment motions in this case heard on the same calendar. The Court's ruling on the companion motion filed by GHC of Contra Costa, LLC, Life Generations Healthcare, and Dr. Nguyen-Traxler in her capacity as Medical Director (the "GHC ruling") is incorporated herein by reference. The factual background, the summary judgment standard, and the substantive analysis set forth in that ruling apply here and are not repeated. The evidentiary rulings in the GHC ruling are likewise incorporated.

Procedural

Code of Civil Procedure section 437c, subdivision (f)(1) provides in pertinent part: "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 251 ["Summary adjudication must completely dispose of the cause of action to which it is directed."] A motion that seeks to eliminate liability in one capacity while does not dispose of an entire cause of action and therefore does not satisfy this requirement.

Thus, the motion is procedurally improper to the extent it seeks summary adjudication of any cause of action based solely on a particular role. In addition, neither this motion nor the GHC motion differentiates between what Dr. Nguyen-Traxler did or did not do as attending physician versus Medical Director, or identifies any distinct duty arising from one role but not the other. Thus, even if the Court could summarily adjudicate a cause of action based on a role, the motions do not establish the entitlement to adjudication on such a basis.

Merits

For the reasons stated in the GHC ruling, the motion for summary judgment or summary adjudication is denied. Triable issues of material fact exist as to each cause of action asserted against Defendant.

Dr. Nguyen-Traxler's Separate Statement of Undisputed Material Facts filed in support of this motion ("Traxler UMF") tracks the GHC separate statement in all material respects. The basic clinical narrative, expert declarations, and legal theories are the same. However, the Traxler UMF includes facts not present in the GHC separate statement, including facts offered to show that Dr. Nguyen-Traxler did not receive Dr. Ho's progress notes before December 2020, that Bayberry did not have the fax number to which those notes were sent, and that she was unaware that Decedent had stopped attending the liver clinic after November 2018 and assumed Dr. Ho continued to manage his specialty care. The Traxler UMF also adds facts regarding Decedent's weight loss; namely, that there is no record of Decedent being weighed between June 5 and September 10, 2020, and that, because there were no recorded weights in July and August 2020, Dr. Nguyen-Traxler believes she learned of the weight loss from Bayberry staff rather than through her own observation. (Traxler UMF Nos. 12, 14, 19, 21, 26, 31, 34, 46, 47, 55, 57, 60, 63.)

These matters were addressed in the GHC ruling as part of the disputed factual record on the standard of care. As noted there, the parties dispute whether Dr. Nguyen-Traxler received Dr. Ho's notes and whether she had an independent obligation to inquire into and maintain the HCC surveillance schedule regardless of what she received from Dr. Ho. Plaintiffs also dispute the additional weight-loss facts, noting that Dr. Nguyen-Traxler's August 20, 2020 chart note reflects a 42-pound loss, showing that someone was weighing Decedent, and that the failure to investigate this weight loss violated the standard of care, as stated by Dr. Fugaro. Dr. Fugaro also opined that the standard of care required Dr. Nguyen-Traxler to understand her role in the co-management relationship with outside specialists, to maintain awareness of the HCC surveillance schedule, and to recognize and respond to lapses in care, independent of whether she received Dr. Ho's notes. Dr. Fugaro's opinion raises a triable issue regardless of notice.

Dr. Nguyen-Traxler adds two facts directed to the EADCPA cause of action, including that she did not deliberately make false entries in her progress notes falsely representing that she had ordered AFP testing for Decedent and the tests were normal and that she did not do so in her role as Bayberry's medical director. (Traxler UMF Nos. 88-99.) These additional facts do not change the outcome. Summary adjudication of the elder abuse cause of action is denied for the reasons explained in the GHC ruling, including because Defendants rely entirely on their negligence theory to argue that no recklessness occurred, and because the evidence, viewed in the light most favorable to Plaintiff, is sufficient to raise a triable issue of fact on the issue of neglect. (GHC ruling, Section IV.B; Fugaro Decl., ¶ 36; *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 89.)

Disposition

Based on the foregoing, the motion is denied.